

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202008138	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 12/13/2020 2:24 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/13/2022	Precinct: 77		
Date/Time CV Reported Sun, 12/13/2020 7:57 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 12/13/2020 7:57 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Alexander Bobo	00000	947985	060 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jose Albarracin	14046	957320	077 PCT
2. POM Reinaldo Rodriguez	22946	935630	077 PCT
3. POM Yehuda Topper	00575	966371	077 PCT
4. POM Joshua Zucker	15733	958202	077 PCT
5. PO Paul Perico	11138	947338	077 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo entered § 87(2)(b) apartment.	A . Substantiated
B . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo searched § 87(2)(b) apartment.	B . Substantiated
C . LT Alexander Bobo	Discourtesy: Lieutenant Alexander Bobo spoke discourteously to § 87(2)(b)	C . Substantiated
D . LT Alexander Bobo	Abuse: Lieutenant Alexander Bobo failed to provide § 87(2)(b) with a business card.	D . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on December 13, 2020, over the phone.

On December 13, 2020, at approximately 3:00 AM, § 87(2)(b) was inside his bedroom in the § 87(2)(b) floor apartment located at § 87(2)(b) in Brooklyn. § 87(2)(b) shared the apartment with two roommates, § 87(2)(b) and an unnamed roommate. At the time of the incident, § 87(2)(b), § 87(2)(b) and § 87(2)(b) girlfriend, § 87(2)(b) were in the apartment. The unnamed roommate was not at the apartment at the time of the incident. § 87(2)(b) frequently visited § 87(2)(b) apartment, against rules set by § 87(2)(b) landlord. On the night of the incident, § 87(2)(b) had a verbal dispute with § 87(2)(b). § 87(2)(b) called 911 and told operator that § 87(2)(b) had a firearm in the apartment. Lieutenant Alexander Bobo, Police Officer Yehuda Topper, Police Officer Joshua Zucker, Police Officer Reinaldo Rodriguez, Police Officer Jose Albarracin, and Police Officer Paul Perico of the 77 Precinct responded to the incident location. LT Bobo, PO Topper and PO Zucker knocked on § 87(2)(b) front door. § 87(2)(b) answered. LT Bobo told § 87(2)(b) that § 87(2)(b) stated that he had a firearm. LT Bobo repeatedly asked § 87(2)(b) if they can enter and search his bedroom. § 87(2)(b) agreed, and the police officers walked into the apartment (**Allegation A: Abuse of Authority, substantiated**). LT Bobo entered § 87(2)(b) bedroom and searched it (**Allegation B: Abuse of Authority, substantiated**). During the incident, LT Bobo used the word “fucking” with PO Zucker (**Allegation C: Discourtesy, substantiated**). No firearm was recovered from § 87(2)(b) bedroom. The officers left the location and § 87(2)(b) was not issued any summonses or arrested as of result of the incident. LT Bobo did not present § 87(2)(b) with his business card (**Allegation D: Abuse of Authority, substantiated**). § 87(2)(b)

Body camera footage of LT Bobo’s BWC video footage was obtained by the investigation and attached in IA #93 (Board Review #16).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Alexander Bobo entered § 87(2)(b) apartment.

Allegation (B) Abuse of Authority: Lieutenant Alexander Bobo searched § 87(2)(b) apartment.

According to § 87(2)(b) CCRB interview (Board Review #1), § 87(2)(b) stated that he resided at the incident location with two roommates. Upon entry through the front entrance door, there was the living room. On the left of the living room was the kitchen. § 87(2)(b) bedroom was connected to the living room by a hallway. § 87(2)(b) bedroom was on the left of his. The unnamed roommate occupied a room on the right of § 87(2)(b) room. The second roommate was not present at the time of the incident. On the night of the incident, § 87(2)(b) had an argument with § 87(2)(b) in the hallway of the apartment. § 87(2)(b) held an object behind her back and told § 87(2)(b) that she will hit him. § 87(2)(b) did not know what was in § 87(2)(b) hand. § 87(2)(b) asked § 87(2)(b) what the problem between them was. § 87(2)(b) cursed at § 87(2)(b). § 87(2)(b) asked § 87(2)(b) to hit him. § 87(2)(b) came out of his bedroom and broke up the dispute. § 87(2)(b) returned to his bedroom and at this time heard § 87(2)(b) leave the apartment.

Approximately ten minutes later, LT Bobo and PO Zucker knocked on § 87(2)(b) front door.

§ 87(2)(b) wore boxers and was shirtless at the time. Lt. Bobo asked § 87(2)(b) if he had been involved in an incident with anyone. § 87(2)(b) told LT Bobo that he had an argument with § 87(2)(b). § 87(2)(b) said yes. LT Bobo asked § 87(2)(b) if he and § 87(2)(b) got into any other altercations. § 87(2)(b) said they did not. LT Bobo told § 87(2)(b) that § 87(2)(b) informed the police that § 87(2)(b) had a firearm. § 87(2)(b) told LT Bobo that he did not know what he was referring to. LT Bobo asked § 87(2)(b) if he and PO Zucker could enter and search his bedroom. § 87(2)(b) told the officers that they can but then asked the officers to wait for him to put on more clothes before they enter. LT Bobo and PO Zucker ignored § 87(2)(b) request and walked into apartment. § 87(2)(b) led the officers to his bedroom and LT Bobo entered while PO Zucker stood by the door. LT Bobo searched § 87(2)(b) backpack on the floor, opened § 87(2)(b) closet, moved his clothing around and looked under his bed. LT Bobo did not retrieve any items from § 87(2)(b) bedroom and exited. LT Bobo was inside § 87(2)(b) bedroom for approximately five minutes. Lt Bobo asked § 87(2)(b) if he could speak with § 87(2)(b). § 87(2)(b) knocked on § 87(2)(b) bedroom door. § 87(2)(b) answered and let LT Bobo inside. § 87(2)(b) did not hear the conversation between § 87(2)(b) and LT Bobo.

LT Bobo exited § 87(2)(b) bedroom and asked to see § 87(2)(b) ID. § 87(2)(b) complied. LT Bobo asked § 87(2)(b) if he had a lease for the apartment. LT Bobo and PO Zucker asked § 87(2)(b) to wait and left the apartment but they never returned. § 87(2)(b) was not arrested or issued any summonses as of result of this incident.

According to LT Bobo's CCRB interview (Board Review #4), LT Bobo and his partner, PO Rodriguez, responded to a radio call regarding a dispute involving a possible weapon. After arriving at the apartment building, the officers were met on scene by PO Topper, PO Zucker, and § 87(2)(b). § 87(2)(b) told the officers that she was the 911 caller and that she had recently been inside the incident location and got into an argument with § 87(2)(b). She identified § 87(2)(b) by his full name. § 87(2)(b) told LT Bobo that she occasionally stayed at the location and at the time of the incident, she believed § 87(2)(b) was in possession of a firearm, however § 87(2)(b) did not mention to LT Bobo that she observed any weapon or firearm on § 87(2)(b). LT Bobo, PO Topper, and PO Zucker went inside the building. PO Rodriguez remained outside with § 87(2)(b). LT Bobo knocked on § 87(2)(b) apartment door. § 87(2)(b) opened, and LT Bobo observed § 87(2)(b) wearing shorts and a tank top. § 87(2)(b) did not request time to put on additional clothing. LT Bobo explained to § 87(2)(b) that he was responding to a 911 call regarding the allegation that he had a weapon. § 87(2)(b) tried to walk away. LT Bobo explained to him that he had to come inside the apartment to investigate. § 87(2)(b) told LT Bobo, "Okay". LT Bobo, PO Topper and PO Zucker entered the apartment. § 87(2)(b) did not deny the officers entry or change his mind and ask them to leave at any point during the incident. § 87(2)(b) walked LT Bobo to his bedroom. LT Bobo told § 87(2)(b) that § 87(2)(b) called 911 and accused him of having a firearm. § 87(2)(b) denied the allegation. LT Bobo did not touch or move anything in § 87(2)(b) bedroom and did not observe any firearms in plain view. LT Bobo exited § 87(2)(b) bedroom and knocked on § 87(2)(b) door. § 87(2)(b) answered and led LT Bobo into his bedroom. LT Bobo spoke with § 87(2)(b) and asked him if he saw § 87(2)(b) with a firearm. § 87(2)(b) said no.

After speaking with § 87(2)(b) LT Bobo returned to § 87(2)(b) bedroom. PO Topper and PO Zucker stood behind LT Bobo outside the door. LT Bobo asked § 87(2)(b) again if there are any firearms in the apartment. § 87(2)(b) said no. LT Bobo did not enter any other rooms in the apartment other than § 87(2)(b) bedroom and § 87(2)(b) bedroom. LT Bobo did not search § 87(2)(b) backpack on the floor of his bedroom and did not open his bedroom closet or moved the contents around. Neither LT Bobo nor any other officers present looked under § 87(2)(b) bed. LT Bobo stated that that § 87(2)(b) mattress was on the floor and that it would not have been possible to

look under it.

According to § 87(2)(b) 911 call (Board Review #2), she told the 911 operator that § 87(2)(b) tried to attack her and verbally threatened to “kill” her with a firearm, however, § 87(2)(b) told the 911 operator that she did not observe § 87(2)(b) with any weapon. § 87(2)(b) did not identify § 87(2)(b) by name but provided that § 87(2)(b) was a black male with dreadlocks and wore boxers and a white t-shirt to the 911 operator. She told the 911 operator that § 87(2)(b) was present at the location at the time of the call and that she believed there is a warrant out for § 87(2)(b) because officers had previously responded to the location. § 87(2)(b) told the 911 operator that § 87(2)(b) had a history of attacking women.

According to PO Zucker’s BWC video (Board Review 18), at timestamp 02:13, PO Zucker arrives at the incident location with PO Topper. At timestamp 03:14, § 87(2)(b) tells PO Zucker and PO Topper that § 87(2)(b) has a tendency to escape through the § 87(2)(b) floor window when officers respond to the location. At time stamp 08:30, LT Bobo arrives at the location. PO Zucker informs LT Bobo that § 87(2)(b) has twenty-two priors. At timestamp 08:26, PO Topper tells LT Bobo that § 87(2)(b) jumps out the § 87(2)(b) floor whenever police officers come to the location. At timestamp 14:47, LT Bobo and PO Zucker enter apartment staircase. PO Zucker’s BWC footage showed officers lingering outside of § 87(2)(b) apartment for at least ten minutes before deciding to enter.

According to LT Bobo’s BWC video footage (Board Review #16), at timestamp 00:30, LT Bobo and other officers meet § 87(2)(b) at the entrance of apartment building. At timestamp 1:21, LT Bobo asks § 87(2)(b) if she observed § 87(2)(b) with a firearm. § 87(2)(b) says “Never”. § 87(2)(b) tells the officers that § 87(2)(b) wore a t-shirt and pajama pants. At timestamp 02:25, LT Bobo looks at a picture of § 87(2)(b) on a cellphone. At timestamp 02:50, § 87(2)(b) tells LT Bobo and the other officers that she is technically not allowed at the apartment but had obtained permission from the landlord. At timestamp 05:52, § 87(2)(b) tells LT Bobo that § 87(2)(b) has in the past jumped out of his window when police came for him. At timestamp 06:50, LT Bobo enters the exterior staircase of § 87(2)(b) and walks up to § 87(2)(b) apartment door. LT Bobo knocks on § 87(2)(b) door and announces that he is the police. At timestamp, 07:40, § 87(2)(b) answers and opens the door. § 87(2)(b) is wearing a pair of boxers and a white tank top. At timestamp 08:15 § 87(2)(b) tells LT Bobo that he had an argument with § 87(2)(b). § 87(2)(b) explains that there are no weapons involved. LT Bobo asks § 87(2)(b) if he can look inside his bedroom. § 87(2)(b) asks LT Bobo for the reason why. LT Bobo tells § 87(2)(b) that there is an allegation of a weapon inside the apartment. At timestamp 08:22, LT Bobo asks § 87(2)(b) “Where’s your room?” § 87(2)(b) replies, “My room is in the back. LT Bobo asks § 87(2)(b) “Do you mind taking me to your room?” § 87(2)(b) replies to LT Bobo, “For what reason?” LT Bobo tells § 87(2)(b) “There was an accusation that there were some weapons, or something like that.” § 87(2)(b) asks LT Bobo, “Who had a weapon?” LT Bobo tells § 87(2)(b) “Somebody had a weapon.” LT Bobo thanks § 87(2)(b) for his cooperation. At timestamp 08:40, LT Bobo tells § 87(2)(b) “We will make it real short and sweet. We will look to see if there are any weapons. We will take a report and that will be the end of it.” § 87(2)(b) says “Okay, no problem.” At timestamp 08:45, LT Bobo gestures his arm towards the inside of § 87(2)(b) apartment and asks him, “Do you mind?” § 87(2)(b) asks LT Bobo, “Who’s room are you trying to go to”. LT Bobo tells § 87(2)(b) “Yours.”

§ 87(2)(b) says “Okay”. § 87(2)(b) waves his hand to signal LT Bobo to follow him. At timestamp 08:49, LT Bobo walks in § 87(2)(b) apartment. § 87(2)(b) asks LT Bobo to give him time by saying, “One second, let me...” LT Bobo cuts § 87(2)(b) mid-sentence and says, “Let’s see if there’s a weapon.” At timestamp 08:55, § 87(2)(b) asks LT Bobo, “I’m supposed to have a

weapon?" LT Bobo tells § 87(2)(b) "There supposed to be a weapon somewhere in that § 87(2)(b) room." § 87(2)(b) escort LT Bobo towards his bedroom. At timestamp 09:05, § 87(2)(b) tells LT Bobo "You can come in my room". At timestamp 09:15, § 87(2)(b) escort LT Bobo to his bedroom. The BWC video footage does not show LT Bobo or any other officers searching § 87(2)(b) backpack, closet or under his bed. § 87(2)(b) backpack was not visible in any of the BWC video footage. PO Zucker stands outside of § 87(2)(b) bedroom as LT Bobo speaks with § 87(2)(b) in the bedroom. At timestamp 15:21, PO Zucker radios PO Topper to bring him a UF-61 complaint form. PO Topper enters the apartment with the form. PO Zucker fills out the document with § 87(2)(b) information. Additional officers did not enter any other rooms inside the apartment at any time.

According to People v McBride 14 N.Y.3d 440 (2010) (Board Review 22), to determine whether exigency exists, a court must determine "whether in light of all the facts of the particular case there was an urgent need that justifies a warrantless entry." The court considered factors including (1) the gravity or violent nature of the offense with which the suspect is to be charged, (2) whether the suspect is reasonably believed to be armed, (3) a clear showing of probable cause to believe that the suspect committed the crime, (4) strong reason to believe that the suspect is in the premises being entered, (5) a likelihood that the suspect will escape if not swiftly apprehended, and (6) the peaceful circumstances of the entry.

According to People v. Gonzalez, 39 N.Y.2d 122 (1976) (Board Review 26), consent to search, a relinquishment of constitutional protection under both the Federal and State Constitutions against unjustified official intrusion, must be a free and unconstrained choice. Official coercion, even if deviously subtle, nullifies apparent consent. One factor that the court considers as to whether consent is truly voluntary is whether a defendant was advised of his right to refuse to consent.

According to the NYC Administrative Code Section 14-173 (Board Review 24), when a search of a person or premise is not conducted pursuant to a warrant, the officers are to articulate, using plain and simple language and to deliver in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explaining that such search will not be conducted if such person refuses to provide consent to such search.

§ 87(2)(g)
While § 87(2)(b) initially reported that § 87(2)(b) threatened to assault her with a firearm, § 87(2)(b) was not physically harmed, nor did she observe a firearm in his possession. This information was provided to LT Bobo upon his arrival at the location, when he was speaking with § 87(2)(b) outside the location and outside the presence of § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

It is undisputed by all parties and confirmed in BWC (Board Review 16) that LT Bobo gained entry to § 87(2)(b) apartment after repeatedly asking to enter. § 87(2)(b) did not invite LT Bobo inside his apartment. On the first time LT Bobo asked § 87(2)(b) to let him enter his apartment, § 87(2)(b) asked LT Bobo for his reason. LT Bobo told § 87(2)(b) that there was an accusation of a possible weapon inside his bedroom. LT Bobo asked § 87(2)(b) to show him his bedroom for a second time, and § 87(2)(b) agreed. When LT Bobo entered the apartment, § 87(2)(b) told LT Bobo to wait, however LT Bobo told § 87(2)(b) that the search of a possible weapon must be

conducted.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as *substantiated*.

Allegation (C): Lieutenant Alexander Bobo spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not mention (Board Review #1), any discourteous language used by LT Bobo or any of the responding officers.

LT Bobo was presented with his BWC video footage (Board Review #16). In the video, LT Bobo tells PO Zucker, “Bring her downstairs and let’s do a fucking 61.” When asked if he used the word “fucking” LT Bobo responded that he said, “bring her downstairs and let’s do a 61.” LT Bobo stated that he was unable to speculate as to what § 87(2)(b) was able to hear at the time, he gave PO Zucker the instruction. However, LT Bobo stated that that § 87(2)(b) was in the same room as him when the instruction was said. LT Bobo could not confirm nor deny if either PO Topper or PO Zucker used the word “fucking” during the incident.

According to NYPD Patrol Guide Procedure 200-02 (Board Review #6), the mission of the New York City Police Department, members of service are instructed to treat citizens with courtesy and professionalism. This procedure also states that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy.

According to NYPD Patrol Guide Procedure 203-10 (Board Review #7), members of service are explicitly prohibited from using discourteous language or remarks to address members of the public.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be *Substantiated*.

Allegation (D): Lieutenant Alexander Bobo failed to provide § 87(2)(b) with a business card.

It is undisputed that LT Bobo and other officers did not provide a business card to § 87(2)(b)

In his CCRB statement (Board Review #1), § 87(2)(b) did not mention whether he requested business cards from the responding officers, nor did § 87(2)(b) mention whether the responding officers him presented their business cards to him.

According to LT Bobo’s CCRB interview (Board Review #4), LT Bobo did not present his business card to § 87(2)(b) because it was his understanding that he was not obligated to. LT Bobo stated that he is required to present a business card to a civilian after a search, a Level 3

Civilian and Officer CCRB Histories

- LT Bobo has been a member of service for twelve years and has been a subject in thirty-two CCRB complaints and eighty-eight allegations, of which six were substantiated.
- #200915588 involved substantiated allegations of Abuse of Authority-Stop against LT Bobo. The NYPD imposed Command Discipline B.
- #201212122 involved substantiated allegations of Abuse of Authority- Frisk, Abuse of Authority- Search and Abuse of Authority-Stop against LT Bobo. The NYPD APU dismissed the allegations of Abuse of Authority-Frisk and Abuse of Authority-Search. NYPD APU found LT Bobo guilty of the Stop allegation. LT Bobo forfeited two vacation days.
- #201908128 involved substantiated allegations of Abuse of Authority-Entry of Premises, and Abuse of Authority-Threat of Arrest against LT Bobo. The CCRB recommended formalized training for the allegation of Abuse of Authority-Entry of Premises, and the NYPD imposed Command discipline A. The CCRB recommended Command Discipline A for the allegation of Abuse of Authority-Threat of Arrest. The NYPD imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 22, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review #10).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator: Jeffrey Tsui INV Jeffrey Tsui 05/6/2022
Signature Print Title & Name Date

Squad Leader: Simon Wang IM Simon Wang 04/14/22
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date